

OFFICE OF DIVISION COUNSEL

The Loudoun County School Board shall employ in-house attorneys in the Office of Division Counsel, who shall be responsible to the school division for guidance on all matters of a legal nature.

A. Legal Services Provided by the Office of Division Counsel. The School Board shall appoint a qualified and licensed attorney to serve as Division Counsel. The Division Counsel shall lead the Office of Division Counsel. The Office of Division Counsel's responsibilities shall include, but not be limited to, the following:

1. Represent and provide legal guidance to the Loudoun County School Board, which, as the legal entity charged with oversight of the Loudoun County Public Schools (LCPS), is the client of Division Counsel.

2. Provide legal guidance and representation to the administration and staff of LCPS pertaining to matters falling within their respective official capacities as LCPS employees, but only in situations where that representation does not create a conflict of interest with representation of the School Board.

3. Attend all meetings of the Loudoun County School Board, and, when requested, meetings of committees, work sessions, public hearings, special meetings, and other entities created by the School Board or the Superintendent.

4. Prepare or review motions, notice, and resolutions as requested by the School Board or its members and provide the School Board with legal guidance regarding the conduct of its meetings under the Virginia Freedom of Information Act (FOIA) and advice regarding such other legal issues as may come before the School Board.

5. Provide the Clerk of the School Board (Clerk) and Deputy Clerk of the School Board with legal guidance, to assure compliance with FOIA, the Virginia State and Local Government Conflict of Interests Act (COIA), and other state and federal laws governing the duties of the Office of the Clerk.

6. Select and oversee outside counsel for the provision of such legal services as may be necessary in specialized areas of the law, for example: for litigation; where ethical conflicts prevent the Office of Division Counsel from representing the School Board, its members, or employees (School Board or LCPS); or as otherwise necessary to supplement the resources of the Office of Division Counsel. Division Counsel is responsible for managing the legal fees associated with the use of outside counsel. Division Counsel shall keep the School Board apprised of specific matters referred to outside counsel where the

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Board's responsibility for attorney's fees and costs can reasonably be anticipated to exceed \$250,000, doing so in advance of retaining such outside counsel, where circumstances permit.

7. Prepare and/or review contracts and agreements between the School Board, LCPS, LCPS employees, and other parties on matters relating to the school division and review memoranda of understanding.
8. Prepared legal memoranda on issues germane to the operations of the school division.
9. Notwithstanding circumstances where outside counsel has been assigned and/or retained, serve as the School Board's liaison with local, state, and federal courts and administrative agencies and provide representation, as appropriate, on matters pending in such courts or agencies.
10. Assist the School Board and the administration with proposed legislation and legislative priorities.
11. Assist the School Board and administration with the drafting and content of policies and regulations of a legal nature.
12. Provide professional development training to School Board members, LCPS administrators, and staff.
13. Identify potential legal issues and needs, and work with the School Board and the administration to resolve them.

B. Communications with Division Counsel and Outside Counsel. The Loudoun County School Board, as a corporate body, is the client of Division Counsel.

Except in unusual circumstances, all communications between School Board members, the administration, and/or LCPS employees with outside attorneys shall be coordinated through the Office of Division Counsel.

C. Review of Legal Services and Annual Evaluation of Division Counsel. The Division Counsel will report to the School Board. The authority to employ or dismiss Division Counsel will rest with the School Board. The authority to employ or dismiss professional staff within the Office of Division Counsel rests with the Division Counsel in compliance with applicable School Board policies and their accompanying LCPS regulations.

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Prior to the end of each school year, the School Board shall review with the Superintendent a summary of all legal services provided by or through the Office of Division Counsel, Human Resources and Talent Development, Operations, and Special Education for the purpose of evaluating such legal services provided to the division. The School Board shall review the costs and services incurred by such departments for their respective use of outside counsel on an annual basis as part of the Division Counsel's annual evaluation. The School Board Chair and the Superintendent are responsible for coordinating this task annually.

The Loudoun County School Board, the Superintendent (or designee), and Division Counsel are responsible for implementing and monitoring this policy.

This policy shall be reviewed at least every five years by the School Board and Division Counsel and revised as necessary.

[Former Policy 2-15]

Adopted: 8/3/73

Revised: 8/27/85, 6/22/93, 9/22/09, 9/13/16

Confirmed: 9/14/21

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